

or procuring the election of any candidate at a parliamentary election shall be guilty of a corrupt practice):—

“(4) Where the person guilty of an offence against this section is a body of persons corporate or unincorporate, every director or officer of that body shall, unless he proves that the act constituting the offence was committed without his knowledge or consent, be guilty of the like offence.”

Short title
and applica-
tion.

2.—(1) This Act may be cited as the Representation of the People (No. 2) Act, 1922, and shall be included among the Acts which may be cited as the Representation of the People Acts, 1918 to 1922.

10 & 11
Geo. 5. c. 67.

(2) This Act shall not apply to any part of Ireland other than Northern Ireland, and in its application to Northern Ireland shall, for the purposes of sections six and fifteen of the Government of Ireland Act, 1920, be deemed to be an Act passed before the appointed day.

CHAPTER 42.

An Act to provide for the payment of contributions by teachers towards the cost of benefits under the School Teachers (Superannuation) Act, 1918, and for matters incidental thereto, and to make provision as to the calculation of average salary for the purposes of the said Act.

[4th August 1922.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Contribu-
tions by
teachers.

1.—(1) As from the first day of June, nineteen hundred and twenty-two, and until the first day of June, nineteen hundred and twenty-four, there shall be paid by or in respect of every teacher who was on the first day of June, nineteen hundred and twenty-two, or is at any time thereafter employed in recognised service and who was not

or is not disqualified for the receipt of benefits under the School Teachers (Superannuation) Act, 1918 (in this Act referred to as "the principal Act"), by virtue of section four of that Act, by way of contribution towards the cost of providing benefits under the principal Act an amount equal to five per cent. of the amount of his salary for the time being, or, in the case of a teacher who is, by reason of sickness, receiving less than full salary, the amount which he is actually receiving by way of salary for the time being, provided that the contribution shall not exceed the amount, if any, by which the salary of the teacher exceeds four-fifths of the full salary which the Board would be prepared in his case to recognise for the purposes of grant. 8 & 9 Geo. 5.
c. 55.

(2) The Board of Education (in this Act referred to as "the Board") may, with the consent of the Treasury, make rules prescribing the manner in which contributions under this section are to be collected, and those rules may provide for the deduction of the amount of the contribution from the salary of a teacher by or in respect of whom a contribution is payable, and for the collection of contributions by means of deductions made from time to time from any grants payable out of moneys provided by Parliament which may be applied directly or indirectly to the payment of the salaries of teachers, and for authorising the provisional collection of contributions from or in respect of teachers whose liability to contribute is for the time being in doubt and for requiring contributions provisionally collected but not in fact payable to be repaid.

(3) Any period of service in respect of which a payment of the contribution required under this section has not been made by or in respect of any teacher shall be treated as not being a period of recognised service.

(4) All sums payable by way of contributions under this section shall, so far as not recovered by means of deductions from grants, be paid to and recoverable by the Board, and all sums received by the Board under this section shall, except in so far as they are authorised to be applied as an appropriation in aid of the moneys provided by Parliament for the expenses of the Board, be paid into the Exchequer.

Exemption
from liability
to contribute,
and repay-
ment of con-
tributions, in
certain cases.

2.—(1) If any teacher satisfies the Board that it is impossible for him by reason of his age to complete before attaining the age of sixty-five years such number of years of recognised or qualifying service as are necessary under paragraph (a) of subsection (1) of section one of the principal Act to qualify him at that age for an annual superannuation allowance under that Act, or that he is not a British subject, he shall, as from the date on which he so satisfies the Board, cease to be a person by or in respect of whom contributions are payable under this Act, and any person who so satisfies the Board shall thereupon become disqualified for the receipt of any benefits whatsoever under the principal Act, and be entitled to repayment of a sum equal to the aggregate amount of any such contributions previously paid by or in respect of him after deducting any sums previously received by him by way of benefit under the principal Act.

(2) If any teacher, being a woman, ceases to be employed as a teacher on or within one year after marriage and immediately on so ceasing satisfies the Board that she does not intend to become again employed as a teacher, or if any teacher when he attains the age of sixty-five years is not qualified for a superannuation allowance, that teacher shall be entitled to repayment of a sum equal to the aggregate amount of any contributions paid by or in respect of him after deducting any sums previously received by him by way of benefit under the principal Act.

(3) Where any teacher has been repaid contributions under this section, he shall cease to be qualified to receive any benefits whatsoever under the principal Act or to be liable to pay contributions.

(4) Where a teacher dies without having received any benefits under the principal Act, and without having received repayment of contributions under this Act, his legal personal representatives shall, if a death gratuity is not payable to them under the principal Act, be entitled to the payment of a sum equal to the aggregate amount of any contributions paid by or in respect of the teacher under this Act.

Saving.

3. If any teacher who, immediately before he became subject to the principal Act, was subject to the

provisions of the Elementary School Teachers (Superannuation) Act, 1898, or the Elementary School Teachers (Superannuation) Act, 1912, or any pension scheme, and who in consequence of the principal Act ceased to be subject to those provisions, proves to the satisfaction of the Board that he is in a worse position by reason of the foregoing sections of this Act than that in which he would have been under the said provisions or the pension scheme, as the case may be, the Board shall, at such time and in such manner as shall seem just to them, award to him such compensation as shall in their opinion be sufficient to compensate him for the difference in his position.

61 & 62 Vict.
c. 57.
2 & 3 Geo. 5.
c. 12.

The Board shall, for the purposes of this section, act on a report from the Government Actuary who shall before making such report be required to consider any representations made by or on behalf of the teacher concerned, and a copy of such report shall be communicated to the teacher if he so desires.

4. In determining the amount of the salary of a teacher for the purposes of this Act, the salary shall, unless the Board otherwise direct, be treated as not including fees or other emoluments received by that teacher, and shall also, if the Board so direct, be treated as being reduced by such part thereof as in their opinion is in excess of the amount which is proper, or would, if the teacher were employed in a grant-aided school, be proper, to be recognised for the purposes of grant, and, where the amount of the salary of a teacher in any year has been determined for the purposes of this Act, that amount shall be taken to be the amount of his salary in that year for the purpose of the calculation of average salary under the principal Act.

Calculation
of salary.

5. This Act may be cited as the School Teachers (Superannuation) Act, 1922, and the principal Act and this Act may be cited together as the School Teachers (Superannuation) Acts, 1918 and 1922.

Short title.

